

10. 9:00 AM CASE NUMBER: C25-02299
CASE NAME: SHANNON SMITH VS. CHRISTOPHER KMIEC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: KMIEC, CHRISTOPHER
TENTATIVE RULING:

VACATED

11. 9:00 AM CASE NUMBER: C25-02299
CASE NAME: SHANNON SMITH VS. CHRISTOPHER KMIEC
*HEARING ON MOTION IN RE: STRIKE
FILED BY: KMIEC, CHRISTOPHER
TENTATIVE RULING:

VACATED

12. 9:00 AM CASE NUMBER: L24-03719
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. TYISHA PAULK
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY: Tyisha Paulk
***TENTATIVE RULING**

DENIED. Defendant was advised by Minute Order issued by this Court on 11/14/25 that the same Motion to Set Aside Default presently before the Court required proof of service pursuant to CCP 1010 and CRC 3.111. The matter was continued to this present date to allow her to effect service on Plaintiff. She has once again failed to do so.

13. 9:00 AM CASE NUMBER: MSC19-02596
CASE NAME: DEBRA WALKER VS. TROY MARTINEZ
*HEARING ON MOTION IN RE: DISMISS FOR FAILURE TO BRING ACTION TO TRIAL
FILED BY: Troy Martinez, et al
TENTATIVE RULING:

The motion to dismiss, filed by defendants Troy Martinez and Normandie & Slauson, LLC is **granted**. Defendants shall prepare and circulate a proposed form of judgment, separate from any order on this motion, for submission to the Court.

Plaintiff Debra Walker filed this suit against defendants on December 11, 2019. The Court docket reflects multiple occasions on which counsel for both sides failed to appear or other delays occurred. In June of 2024 at a settlement conference with Judge Melissa O'Connell, parties represented that they had reached a settlement. The court minutes show no terms to which parties allegedly agreed. Plaintiff's attorney then reduced the agreement to a writing, which plaintiff signed in September of 2024. Defendants delayed in returning an executed copy. When defendants finally

returned the agreement, it contained changes. Defendants requested that *plaintiff* accept the changes by initialing and signing a copy of the “counteroffer.”

Plaintiff refused to accept the changes applied by defendants. Instead, she sent a new copy with different terms and noticed a site inspection and deposition of defendant Martinez. On March 5, 2025, defendants sent another “settlement offer” to plaintiff, which she did not sign. Notably, by May of 2025, there was no single document bearing both sides’ signatures, and neither plaintiff nor defendants were represented by the same counsel as at the June 2024 settlement conference. Plaintiff’s new counsel, Perry Popovich, told defendants’ new counsel, Rachel Doughty, that parties did not agree about the “payment form” and that plaintiff would be filing an amended complaint.

On August 26, 2025, a CMC was held and defendants stated an intention to file a motion to dismiss based on the five-year statute. Within a week, plaintiff filed a motion to enforce settlement pursuant to Code of Civil Procedure section 664.6(a). That motion was denied in December 2025.

Approximately two weeks after plaintiff filed her motion to enforce, the defendants filed the present motion to dismiss for delay in prosecution under both discretionary and mandatory standards. The hearing date was originally set for January 23, 2026. In an attempt to avoid further litigation, the defendants sought an order shortening time on this motion, but it was denied. The Court’s tentative ruling from January 23, 2026 cited “procedural errors” by both sides and continued the hearing date to allow the Court to consider the merits of plaintiff’s late-filed opposition, among other things. Neither party opposed the tentative ruling, which became the Court’s order. Accordingly, plaintiff’s opposition has been considered.

Discretionary Standard

The Court may use its discretion to dismiss an action if it has not been brought to trial, or “conditionally settled,” within two years after it was commenced against the defendant. (Code Civ. Proc. § 583.420(a)(2); Cal. Rules of Ct., Rule 3.1340.) A case is “conditionally settled” if and only if both of the following are true: (1) a settlement agreement conditions dismissal on the satisfactory completion of specified terms that are not to be fully performed within two years after the filing of the case, and (2) notice of the settlement is filed with the court under Cal. Rules of Ct., Rule 3.1385. (Cal. Rules of Ct., Rule 3.1340(a).)

Here, the action was also not brought to trial within two years. Further, there was no conditional settlement. Still, the Court declines to dismiss the case based on a discretionary standard.

Mandatory Standard

Code of Civil Procedure, § 583.310 requires an action to be “brought to trial within five years after the action is commenced against the defendant.” Code of Civil Procedure, § 583.360, subdivision (a) provides that “[a]n action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within [five years].” Subdivision (b) clarifies that this requirement is “mandatory,” but subject to exceptions if provided by a statute.

In computing the time within which an action must be brought to trial, certain time periods are excluded, including when (1) jurisdiction of the court was suspended; (2) prosecution or trial was stayed or enjoined, or (3) bringing the action to trial, for any other reason, was impossible, impracticable, or futile. (Code Civ. Proc., § 583.340.)

“Because the purpose of the dismissal statute is to prevent avoidable delay, section 583.340, subdivision (c) makes allowance for circumstances beyond the plaintiff’s control, in which moving the

case to trial is impracticable for all practical purposes.” (*Seto v. Szeto* (2022) 86 Cal.App.5th 76, 85, citations omitted.) In determining if tolling exceptions apply under subdivision (c), the “trial court must consider all the circumstances of the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves.” (*Id.* at 86, citation omitted.) The “trial court has discretion to determine whether that exception applies....” (*Bruns v. E-Commerce Exchange, Inc.* (2011) 51 Cal.4th 717, 731.)

The appropriate analysis focuses on the ‘justifiability’ of the plaintiff’s reason for not bringing the case to trial, rather than on the defendant’s “complicity in the delay.” (*Brunzell Constr. Co. v. Wagner* (1970) 2 Cal.3d 545, 555; see also *Tejada v. Blas* (1987) 196 Cal.App.3d 1335, 1339-1340 [critical factor in applying tolling exceptions to a given factual situation is whether the plaintiff exercised ‘reasonable diligence’ in prosecuting his or her case]; *Westinghouse Elec. Corp. v. Superior Court* (1983) 143 Cal.App.3d 95, 99 [“had plaintiff been the dilatory party, mere impracticability is not an excuse, since the impracticability arises from plaintiff’s own fault”].) The plaintiff bears the burden of proving that the circumstances warrant application of the exception. (*Seto, supra*, 86 Cal.App.5th at 86.)

This case was filed on December 11, 2019, which was approximately six years ago. The plaintiff reasonably believed she had procured a settlement on June 14, 2024 after parties appeared in Court for a settlement conference. Since no written agreement was signed by the parties, plaintiff reasonably needed additional time to prepare and finalize the details. Plaintiff signed the settlement agreement prepared by her attorney on September 1, 2024, but defendants delayed and eventually refused to sign the precise agreement provided by plaintiff. When defendants sent a changed (and signed) agreement back, plaintiff refused to accept it. Some further back and forth occurred and in April of 2025, plaintiff informed the Court and defendants of an intention to file a “Motion to Set Aside Unenforceable Settlement Order” and to amend the complaint.

The time during which plaintiff could be said to have reasonably believed there was a settlement was no more than eight months. This case has extended beyond six years. The settlement negotiation delay is insufficient to make this case timely.

With respect to the other considerations plaintiff argues should toll the five-year statute, they lack merit. Plaintiff argues the parties were at least equally dilatory in litigation, both sides missing appearances, but defendant missing more, etc. This misconstrues the showing necessary here, which is focused primarily on plaintiff’s conduct. Plaintiff also describes a straightforward case with strong evidence, but this factor weighs against delays being justified. Plaintiff argues that a settlement conference is tantamount to “mediation” such that tolling provisions related to submission to mediation apply. (See Memorandum of Points and Authorities in Support of Opposition, 4:17-21; 5:10-6:9.) This position lacks merit for the reasons described in the moving papers. (See Memorandum of Points and Authorities in Support of Motion, 8:9-10:19.)

While the Court acknowledges that defendants caused delay here, possibly in bad faith, the analysis must focus on plaintiff’s own diligence. The delays in this case have amounted to an unreasonable delay in prosecution and plaintiff has failed to meet her burden to demonstrate that bringing the action to trial “was impossible, impracticable, or futile.”

Dismissal is therefore mandatory.